

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK-----  
DALONE SMITH,

Plaintiff,

-- against --

CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, POLICE OFFICER CHRISTOP  
ZOLLINO and NEW YORK CITY POLICE  
OFFICERS "JOHN DOES 1-6", PERSONS  
EMPLOYED BY NEW YORK CITY POLICE  
DEPARTMENT,Defendants.  
-----

X

SUMMONS

:

Index No.: \_\_\_\_\_

:

Date Filed: \_\_\_\_\_

:

Plaintiff designates

:

New York County  
as the Place of Trial

:

The Basis of venue is based  
on CPLR § 504(3)

:

:

X

To the above named Defendants:

**YOU ARE HEREBY SUMMONED** to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York  
January 5, 2016  
Philip V. Aiello  
ATESHOLOU & AIELLO, P.C.  
Attorneys for Plaintiff  
DALONE SMITH  
11 Park Place, Suite 1715  
New York, New York 10007  
(212) 545-1740  
File No.: FA-7026

To:

CITY OF NEW YORK, Claim No.: 2015PI009648  
NEW YORK CITY POLICE DEPARTMENT  
POLICE OFFICER CHRISTOP ZOLLINO (SHIELD NO.: 27732, 32<sup>ND</sup> PCT.)

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

DALONE SMITH,

Plaintiff,

-- against --

CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, POLICE OFFICER CHRISTOP  
ZOLLINO and NEW YORK CITY POLICE  
OFFICERS "JOHN DOES 1-6", PERSONS  
EMPLOYED BY NEW YORK CITY POLICE  
DEPARTMENT,

Defendants.

X

**VERIFIED COMPLIANT**

Index No.:

X

DALONE SMITH (hereinafter the "Plaintiff"), by his attorneys, ATESHOGLOU & AIELLO, P.C., complaining against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER CHRISTOP ZOLLINO and NEW YORK CITY POLICE OFFICERS "JOHN DOES 1- 6", PERSONS EMPLOYED BY NEW YORK CITY POLICE DEPARTMENT (hereinafter collectively "Defendants") upon information and belief, alleges as follows:

1. That at all pertinent times, Plaintiff was and is a resident of the County, City and State of New York.

2. That at all pertinent times, Defendant City of New York (hereinafter "CITY") was and is a municipal corporation incorporated under the laws of New York State.

3. That at all pertinent times, Defendant New York City Police Department (hereinafter "NYPD") was and is an agency of Defendant CITY.

4. That at all pertinent times, Defendant POLICE OFFICER Christop Zollino, Shield No.: 27732 of the 32<sup>nd</sup> Precinct (hereinafter "P.O. Zollino") was and is an employee of Defendant CITY.

5. That at all pertinent times, Defendant Zollino was and is an employee of Defendant NYPD.

6. That at all pertinent times, Defendants “John Does 1-6” (hereinafter the “Officers”) were and are employees of Defendant NYPD.

7. That at all pertinent times, Defendant Officers were and are employees of Defendant CITY.

8. That at all pertinent times, Defendant CITY operated, and presently operates Defendant NYPD.

9. That at all pertinent times, Defendant CITY controlled, and presently controls Defendant NYPD.

10. That at all pertinent times, Defendant CITY managed, and presently manages Defendant NYPD.

11. Plaintiff filed a Notice of Claim (*see* Exhibit “A” annexed hereto) in accordance with General Municipal Law Sections 50(e) on or about April 2, 2015. The Notice of Claim set forth the name and address of Plaintiff, his attorneys, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

12. At least thirty (30) days has passed since service of the Notice of Claim, and payment of the claim has been either refused or neglected.

13. A hearing has not been conducted pursuant to General Municipal Law Section 50(h).

14. This action is being commenced within one year of the incident which gives rise to the action.

15. On or about January 13, 2015 at or near 2920 8<sup>th</sup> Avenue, County, City and State of New York at approximately 2:30 PM, Plaintiff was arrested without probable cause, (hereinafter the "ARREST").

16. During the ARREST, Defendants assaulted and battered Plaintiff.

17. Therafter, Defendants commenced a prosecution against Plaintiff without probable cause or justification, causing Plaintiff to be incarcerated for approximately twelve (12) days.

18. Said prosecution was instituted with malice and bad faith and deliberate indifference to Plaintiff's rights. Said action under Docket No. 2015NY003046 is still pending in New York County Criminal Court.

19. At all times during the ARREST, assault and battery of Plaintiff, Plaintiff was in the custody of Defendants.

20. That Plaintiff was illegally and improperly arrested, assaulted and battered by Defendants through no fault or negligence of his own.

21. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day.

**AS AND FOR A FIRST CAUSE OF ACTION  
FOR FALSE ARREST AND IMPRISONMENT**

22. The allegations set forth in paragraphs "1" through "21" inclusive are incorporated herein as if fully set forth.

23. Defendants P.O. Zollino and Officers intended to cause the arrest, seizure and imprisonment of Plaintiff without a lawful warrant and without probable cause.

24. Defendants knew, or should have known, that the conduct engaged in would result in the false imprisonment of Plaintiff.

25. Plaintiff was aware of such confinement and did not consent to said confinement.

26. The aforementioned confinement was not privileged in any way and was without legal justification.

27. Defendants CITY and NYPD are responsible and liable for the acts of Defendants P.O. Zollino and Officers done within the scope of their employment under the doctrine of *respondeat superior*.

28. As a direct and proximate cause of Defendants' false arrest, seizure and imprisonment of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

29. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A SECOND CAUSE OF ACTION  
FOR ASSAULT AND BATTERY**

30. The allegations set forth in paragraphs "1" through "29" inclusive are incorporated herein as if fully set forth.

31. Defendants P.O. Zollino and Officers intended to make bodily contact with Plaintiff.

32. Defendants P.O. Zollino and Officers knew, or should have known, that the conduct engaged in would result in assault and battery to Plaintiff.

33. Defendants P.O. Zollino and Officers did in fact make offensive, bodily contact with Plaintiff.

34. Plaintiff was aware of such bodily contact and did not consent to said bodily contact.

35. The aforesaid bodily contact by Defendants P.O. Zollino and Officers against Plaintiff was offensive to Plaintiff.

36. Said offensive, bodily contact was extreme and outrageous, which exceeded all bounds usually tolerated by a decent society.

37. Defendants CITY and NYPD are responsible and liable for the acts of Defendants P.O. Zollino and Officers done within the scope of their employment under the doctrine of *respondeat superior*.

38. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

39. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A THIRD CAUSE OF ACTION**  
**INTENTIONAL INFLICTION OF EMOTION DISTRESS**

40. The allegations set forth in paragraphs "1" through "39" inclusive are incorporated herein as if fully set forth.

41. That Defendants P.O. Zollino and Officers intended to make offensive, bodily contact with Plaintiff.

42. That Defendants P.O. Zollino and Officers knew, or should have known, that the conduct engaged in would result in assault and battery to Plaintiff.

43. That Defendants P.O. Zollino and Officers did in fact make offensive, bodily contact with Plaintiff.

44. Said offensive, bodily contact was extreme and outrageous, which exceeded all bounds usually tolerated by a decent society.

45. Such extreme and outrageous conduct caused Plaintiff to suffer severe and debilitating mental anguish which had a disabling effect on Plaintiff.

46. Defendants NYC and NYPD are responsible for and liable for the acts of Defendants P.O. Zollino and Officers done within the scope of their employment through the doctrine of *respondeat superior*.

47. As a direct and proximate cause of Defendants' intentional infliction of emotional distress of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further pecuniary damages and legal costs, all to Plaintiff's damages in the amount which exceeds the jurisdictional limitations of the courts and in an amount to be determined at a trial of this action.

48. That the conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders the Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A FOURTH CAUSE OF ACTION  
FOR NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION**

49. The allegations set forth in paragraphs "1" through "48" inclusive are incorporated herein as if fully set forth.

50. That Defendants CITY and NYPD failed to exercise reasonable care in hiring Defendants P.O. Zollino and Officers; therefore, breaching their duty to Plaintiff as well as to the public to exercise reasonable care in their hiring of employees.

51. That Defendants CITY and NYPD should have known of the propensity of Defendants P.O. Zollino and Officers to commit injurious acts.

52. That Defendants CITY and NYPD were negligent in failing to properly train and supervise its employees, more specifically Defendants P.O. Zollino and Officers.

53. Defendants CITY and NYPD are responsible and liable for the acts of Defendants P.O. Zollino and Officers done within the scope of their employment under the doctrine of *respondeat superior*.

54. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.



55. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A FIFTH CAUSE OF ACTION  
FOR NEGLIGENCE**

56. The allegations set forth in paragraphs "1" through "55" inclusive are incorporated herein as if fully set forth.

57. Defendants' actions in causing the aforesaid assault, battery, arrest, seizure, imprisonment and malicious prosecution of Plaintiff were in breach of the duty of due care owed to Plaintiff. Officers acted negligently and in disregard for the procedures and safeguards, which are the standard for the arrest and lawful stop of a citizen, in arresting Plaintiff in the absence of reasonable suspicion or probable cause. Officers further breached their duty of care to investigate before affecting the stop and seizure of a citizen and in their continued prosecution of Plaintiff.

58. That Defendants CITY and NYPD are responsible and liable for the acts of Defendants P.O. Zollino and Officers done within the scope of their employment under the doctrine of *respondeat superior*.

59. As a direct and proximate cause of Defendants' negligence, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

60. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A SIXTH CAUSE OF ACTION  
FOR VIOLATION OF THE UNITED STATES CONSTITUTION  
42 U.S.C. 1983 AND NEW YORK CONSTITUTION**

61. The allegations set forth in paragraphs "1" through "60" inclusive are incorporated herein as if fully set forth.

62. That it was Defendants' governmental policy, practice and/or procedure regarding the use of force, which contributed to and caused the incident to occur and certain U.S Constitutional deprivations to Plaintiff, including the Fourth, Eighth and Fourteenth Amendments to the Constitution.

63. That there have been patterns and/or series of incidents of unconstitutional conduct which have caused the use of excessive force in similar instances as herein.

64. That Defendants acted recklessly including a general failure to supervise and a failure to select psychologically fit and properly trained employees, including Defendants P.O. Zollino and Officers, to conduct arrests.

65. That Defendants failed to properly and sufficiently train employees including Defendants P.O. Zollino and Officers, in the constitutional use of force and failed to adequately supervise the performance of employees, including Defendants P.O. Zollino and Officers, to insure those exercising bad judgment in the use of force received corrective training.

66. That Defendants improperly trained employees, including Defendants P.O. Zollino and Officers, and that this failure to train was a policy of Defendants, and in deliberate indifference to the rights of persons, including Plaintiff.

67. As a direct result of the aforesaid acts, omissions, and policies of Defendants, under color of State Law, Plaintiff was deprived of his rights, privileges, and immunities guaranteed under the United States Constitution and 42 U.S.C. §1983, including but not limited to the Fourth, Eighth, and Fourteenth Amendments.

68. As a direct result of the aforesaid acts, omissions, and policies of Defendants, Plaintiff was deprived of his rights, privileges, and immunities guaranteed under the New York Constitution including but not limited to, Article 1, Sections 8 and 12.

69. As a direct result of the aforesaid acts, omissions, and policies of Defendants, Plaintiff was deprived of his rights, privileges, and immunities guaranteed under New York Common Law to be free from false arrest, false imprisonment, assault and battery, and malicious prosecution.

70. As a direct result of the acts, omissions, and policies of Defendants, Defendants acted with deliberate indifference to Plaintiff's constitutional rights in failing to adequately train, supervise, and discipline their employees.

71. As a direct and proximate cause of Defendants' violations of the United States Constitution 42 U.S.C. 1983 and New York Constitution, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

72. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages and for Plaintiff's attorney's fees.

**WHEREFORE**, Plaintiff demands judgment against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER CHRISTOP ZOLLINO and NEW YORK CITY POLICE OFFICERS "JOHN DOES 1-6" PERSONS EMPLOYED BY NEW YORK CITY POLICE DEPARTMENT individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: New York, New York  
January 5, 2016



---

Philip V. Ajello  
ATESHOGLU & AIELLO, P.C.  
Attorneys for Plaintiff  
DALONE SMITH  
11 Park Place, Suite 1715  
New York, New York 10007  
(212) 545-1740  
File No.: FA-7026

VERIFICATION

STATE OF NEW YORK     )

S.S.:

COUNTY OF NEW YORK   )

Dalone Smith, being duly sworn deposes and says that deponent is the plaintiff in the within action; that deponent has read the foregoing Complaint and knows the contents thereof, and that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters deponent believes them to be true.

  
Dalone Smith

Sworn to me before this  
7 day of January, 2016



Notary Public

PHILIP AIELLO  
Notary Public, State of New York  
No. 02A15076944  
Qualified in Rockland County  
Commission Expires April 28, 2019